

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF LOUISIANA

DAVID BROWN, ET AL

*** CIVIL ACTION**

VERSUS

*** NO.: 18-6625**

SHEDRICK T. IVEY, ET AL

*** SECTION: E**

**PLAINTIFFS' FIRST SUPPLEMENTAL AND AMENDING PETITION
FOR DAMAGES**

NOW INTO COURT, through undersigned counsel, comes the Plaintiffs, David Brown, Larry Picou and Latrell Johnson, who respectfully file this First Supplemental and Amending Petition for Damages, as follows:

1.

The Plaintiffs have learned, since the filing of the original Petition herein, the identity of the Defendant, Shedrick T. Ivey's employer and the owner of the 2013 International Truck and its trailer to be BHA Express, Inc. Accordingly, paragraph I, of the original Petition filed herein is amended to read as follows:

I.

Made defendants herein are:

SHEDRICK T. IVEY, a person of the full age of majority and domiciled in the County of Russell, State of Alabama;

WESTFIELD INSURANCE COMPANY, a foreign corporation with its domicile located at 940 Greenwich Rd. Westfield Center, Ohio 44251 and with its registered agent of service of process being Louisiana Secretary of State, 8585 Archives Ave., Baton Rouge, Louisiana, 70809; and

BAH EXPRESS, INC., a foreign corporation with its domicile located in Atlanta, Georgia 30321, and with its registered agent of service of process being Waymond D. Hemmings, 4424 Thurman Road, Conyers, Georgia 30288.

2.

Paragraph VI of the original Petition filed herein is amended to read as follows:

VI.

On that date and time, upon information and belief, Defendant, Shedrick T. Ivey, was operating a 2013 International Truck and its trailer, owned by BAH Express, Inc., and while attempting to merge on Chef Menteur Highway, failed to properly lookout and struck Mr. Brown's vehicle.

3.

Paragraph IX of the original Petition filed herein is amended to read as follows:

IX.

Prior to and effective as of the time of this accident, the defendant, Westfield Insurance Company had issued one or more policies of insurance insuring Shedrick T. Ivey, BAH, Express, Inc. and the 2013 International Truck and its trailer, whereunder Westfield Insurance Company obligated itself to compensate the Plaintiffs for the liability and damages asserted herein.

4.

To add Paragraph X to the original Petition filed herein to read as follows:

X.

At all material times hereto, defendant, Shedrick T. Ivey, was in the course and scope of his employment with BAH Express, Inc. and defendant, BAH Express, Inc., is vicariously liable for the negligent acts of its employee, BAH Express, Inc., under the theory of *Respondeat Superior*.

WHEREFORE, Plaintiffs prays:

For leave of Court to file this First Amended Petition; and

That, David Brown, Larry Picou and Latrell Johnson, pray that Shedrick T. Ivey, BAH, Express, Inc. and Westfield Insurance Company, defendants, be served with this Petition, and that after due proceedings there be judgment casting defendants jointly and solidarily liable unto Plaintiffs for compensatory damages, legal interest, all costs and for all general and equitable relief which this Honorable Court is competent to grant.

Respectfully submitted,

NUGENT KEATING

D. PATRICK KEATING (#27825) T.A.
SIMONE R. NUGENT (#34409)
3300 Canal Street, Suite 100
New Orleans, LA 70119
Telephone: (504) 513-3333
Facsimile No.: (877) 565-2570
Counsel for Plaintiffs